

AUTO RITE IT

PERSONAL DATA

The Secretary of State for Health, Welfare and Sport

P.O. Box 20350

2500 EJ The Hague

Date

August 1, 2023

Subject

Our reference

z2023-02849

Contact person

Dutch Data Protection Authority

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Your letter dated

June 7, 2023

Your reference

3608557-1049420

Advice regarding the draft amendment of the Tobacco and Smoking Products Act in connection with the introduction of a registration obligation for sales points of tobacco products and related products

Dear Mr. Van Ooijen,

In a letter dated June 7, 2023, the Dutch Data Protection Authority (AP) was consulted based on the provisions of Article 36, fourth paragraph, of the General Data Protection Regulation (GDPR) regarding the draft amendment of the Tobacco and Smoking Products Act in connection with the introduction of a registration obligation for sales points of tobacco products and related products (hereinafter: the draft). The AP has a comment on the draft and advises that this should be taken into account.

Scope of the draft

The cabinet intends to prohibit the sale of tobacco products and related products in, among others, supermarkets and hospitality establishments.

2 The reduced demand for tobacco products resulting from this will, according to research, not be proportionate to the reduced supply of these products.

3 In other words: the demand for tobacco products and related products will be higher than the supply after the introduction of the ban. It is therefore, according to the explanation accompanying the draft, to be expected that new sales points will open to accommodate this freed-up demand.

4 A related product is defined in Article 1 of the Tobacco and Smoking Products Act as electronic vaping products, an electronic heating device, and a herbal product intended for smoking.

2 Explanation, p. 1, see also Parliamentary Documents 112020/21, 32011, and 32793, no. 79.

3 SEO Economic Research, Limiting tobacco sales to tobacco specialty shops, December 2021.

4 Explanation p. 2-3.

1

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As a result, according to the explanation accompanying the draft, a situation may arise in which there is no longer a clear view of the number of sales points and the type of sales points.

5 The draft aims to address this lack of overview by requiring retailers to register annually as a sales point for tobacco and related products. The purpose of the registration is to facilitate supervision of

compliance with the applicable regulations for tobacco and related products and to monitor tobacco sales points (number and type).

6

Advice

Rights of data subjects

A registration as a sales point for tobacco and related products is not checked for its accuracy (whether the provided data is correct and whether the retailer lawfully offers tobacco and related products) and applies by operation of law. The explanation states that the retailer is self-responsible for a correct registration and keeping it up to date (such as reporting a changed correspondence address). The draft and the explanation do not indicate how the retailer can have data adjusted.

Moreover, a registration - even if it turns out to be incorrect - cannot be deleted.

7

Personal data must be accurate and, where necessary, kept up to date; all reasonable measures must be taken to rectify personal data that are inaccurate, without delay, considering the purposes for which they are processed (the principle of "accuracy").

8 The right to rectification may, based on Article 23 of the GDPR, only be limited if that limitation does not affect the essence of the fundamental rights and freedoms and is a necessary and proportionate measure in a democratic society to safeguard a number of exhaustively enumerated objectives. The explanation accompanying the draft does not address the right to rectification and the applicability of any limitation of this right. The AP advises to address this.

Workload AP

The AP notes that the draft is not expected to require additional efforts from the AP.

5 Explanation, p. 2-3.

6 Explanation, p. 3.

7 Explanation, p. 6.

8 Article 5, first paragraph, part d of the GDPR. See also Article 16 of the GDPR: the data subject has the right to obtain from the controller without delay the rectification of inaccurate personal data concerning him or her. Considering the purposes of the processing, the data subject has the right to obtain the completion of incomplete personal data, including by providing a supplementary statement.

2/3

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Disclosure

The AP intends to make this advice public no earlier than four weeks after the date of this letter on the website www.autoriteitpersoonsgegevens.nl. Unless otherwise notified, it assumes that there are no objections to this.

Yours sincerely,

Dutch Data Protection Authority,

Monique Verdier

Vice Chair

3/3